

		settlement agreement during the pendency of this action as well as a stipulation for judgment as enforcement of the agreement. Plaintiff has also shown that the agreement contains an attorneys' fees provision and that counsel has and will spend about ten (10) hours of time in connection with the motion. Accordingly, and assuming service is appropriately addressed, the motion of plaintiff Consolidated Electrical Distributors, Inc., dba Greentech Renewables, for an order to enforce the written settlement agreement between it and defendants Levion Construction, LLC, Christian Macias, and Zachary Winger through the entry of a joint and severable judgment against them is GRANTED. Plaintiff's request for attorneys' fees of \$3,000 and costs of \$60 is also GRANTED. Plaintiff to give notice.
4.	<u>30-2025-01476678-CU-OE-NJC</u> Hernandez vs. OC & Lau, Inc.	Before the Court are two (2) motions: Motion to Compel Further Responses to Request for Production (ROA 63) and Motion to Compel Further Responses to Special Interrogatories, Set One (ROA 64). On January 8, 2026, Plaintiff Esiquio Hernandez ("Plaintiff") filed the instant Motions against Defendant OC & Lau, Inc., ("Defendant"). ROAs 63, 64. I. Violation of Court Order Under California Code of Civil Procedure Section 2023.010, disobeying a court order to provide discovery is a misuse of the discovery process and is sanctionable conduct. Cal. Civ. Proc. Code § 2023.010. On February 9, 2026, the Court ordered Defendant to supplement responses to Request for Production to include reference to existence or non-existence of responsive documents by no later than March 11, 2026. ROA 83. Defendant failed, without explanation, to supplement the responses by March 11, 2026. ROA 94. Accordingly, sanctions against Defendant in the amount of \$400 are appropriate for this violation.

II. Motion to Compel and Meet and Confer Requirements

California Code of Civil Procedure Section 2030.300 allows a propounding party to move for an order compelling a further response if the propounding party deems an answer to a particular interrogatory to be evasive or incomplete; an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate; or an objection to an interrogatory is without merit or too general. Cal. Civ. Proc. Code § 2030.300.

Likewise, under California Code of Civil Procedure Section 2031.310, the demanding party may move for an order compelling a further response to the demand if the demanding party deems that any statement of compliance with the demand is incomplete; a representation of inability to comply is inadequate, incomplete, or evasive; or an objection is without merit or too general. Cal. Civ. Proc. Code § 2031.310(a)(1), (2), (3).

When bringing a motion to compel further responses interrogatories or a motion to compel further responses to request for production the motion must be accompanied by a meet and confer declaration. *See* Cal. Civ. Proc. Code §§ 2030.300(b)(1); 2031.310 (b)(2).

The Court finds that Plaintiff engaged in sufficient meet and confer efforts with Defendant; however, the supporting declarations are deficient because they do not state whether the parties met and conferred, including through electronic communication, regarding the retention of a certified shorthand reporter for the hearing on the motion, as required by Code of Civil Procedure section 2016.040(b). Accordingly, the meet and confer declarations do not comply with statutory requirements, and denial is warranted on this procedural ground.

III. Mandatory Sanctions

The Court shall impose a monetary sanction against any

	party, person, or attorney who unsuccessfully <i>makes</i> or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Cal. Civ. Proc. Code § 2030.300. The term “substantial justification” means “a justification that ‘is clearly reasonable because it is well grounded in both law and fact.’” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1287 (2024) (quoting <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011)). To avoid sanctions, a party may show “substantial justification” for his or her position—<i>i.e.</i>, a rational basis to conclude that the party’s failure to fulfill its discovery obligations was justified. <i>Pollock v. Super. Ct.</i>, 93 Cal. App. 5th 1348, 1358 (2023) (citing <i>Foothill Properties v. Lyon/Copley Corona Associates</i>, 46 Cal. App. 4th 1542, 1557 (1996)); <i>see also</i> Cal. Civ. Proc. Code § 2030.090(d); <i>U.S. Swimming, Inc.</i>, <i>supra</i>, 200 Cal. App. 4th at 1435. The Court “must make an explicit finding this exception exists,” however, “the court <i>need not</i> make an explicit finding the exception does not exist” <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). In light of Plaintiff’s lack of substantial justification for failing to satisfy all statutory meet and confer requirements, sanctions in the amount of \$200 against Plaintiff’s counsel, Rudy Ginez, are appropriate. Accordingly, Plaintiff’s Motion to Compel Further Responses to Request for Production (ROA 63) and Motion to Compel Further Responses to Special Interrogatories, Set One (ROA 64) are DENIED. The Court IMPOSES sanctions in the amount of \$400 against Steve W. Pornbida, due and payable to the Orange County Clerk of the Court within thirty (30) days of receiving notice.
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		Additionally, the Court IMPOSES sanctions in the amount of \$200 against Rudy Ginez due and payable to Bailey Law Corporation within thirty (30) days of receiving notice. Clerk to give notice.
5.	<u>30-2025-01467967-CU-PO-CJC</u> Doe vs. Agrawal	No tentative ruling.
6.	<u>30-2023-01341633-CU-BT-CJC</u> Altinex, Inc. vs. Breda	Defendant Silvano Breda specially appears in this action and moves “for an order setting aside the default and default judgment against him and [quashing] service of the Summons and Complaint filed by Plaintiff Altinex, Inc.” <i>See</i> notice of motion, ROA 54, at 2:5-6. Defendant contends that the default judgment is void and should be set aside under Code Civ. Proc. § 437(d) because the Court lacks personal jurisdiction over him and the judgment exceeds the amount requested in the complaint. Notice of motion, 2:7-10. He also contends that service of the summons and complaint should be quashed under Code Civ. Proc. § 418.10(a)(1) because the Court lacks personal jurisdiction over him. Notice of motion, 2:11-12. Plaintiff opposes the motion. Plaintiff requested and obtained defendant’s default on November 7, 2024. <i>See</i> ROA 29. Plaintiff had earlier filed a declaration of its counsel in which counsel declared that defendant had been served in Canada under the Hague Convention on August 20, 2024 and submitted a copy of the Certification of Service. <i>See</i> ROA 25.